

Accordingly, the motion must be denied.¹

16. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER IN DEFENDANT DAVID ECKERT'S MOTION TO BIFURCATE TRIAL FILED 8/19/26 BY DEFENDANT BAYWOODS HOMEOWNERS ASSOCIATION AND HOMEOWNERS MANAGEMENT CO.
FILED BY: BAYWOODS HOMEOWNERS ASSOC.
TENTATIVE RULING:

Off calendar pursuant to moving party's request.

17. 9:00 AM CASE NUMBER: N25-0867
CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC
***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**
FILED BY:
TENTATIVE RULING:

At this time, through a combination of filings, it is clear that the three claimants: Susan Mechtel, Robert I. Reed, and Rebecca L. Lewis are the only three individuals entitled to the surplus funds. Through the combination of filings, it is also clear that each of these individuals is conceded by the others to be entitled to the surplus funds, and in the same proportion. The Court therefore approves the claim and authorizes distribution to each of these three individuals of one third of the surplus funds in this matter.

18. 9:00 AM CASE NUMBER: N26-0639
CASE NAME: MILLER STARR REGALIA VS. MOD SUPER FAST PIZZA (CALIFORNIA), LLC
HEARING ON PETITION IN RE: PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: MILLER STARR REGALIA
TENTATIVE RULING:

Before the Court is Petitioner Miller Starr Regalia's Petition to Confirm Contractual Arbitration Award against MOD Super Fast Pizza (California), LLC. No opposition has been filed. After a review of the

¹ As a result of this determination, the Court does not need to address the issues of the 5-year rule and Plaintiff's proposal for case management. As an initial matter, the length of the trial is irrelevant to the deadline for commencing the trial. For the purposes of Code Civil Procedure section 583.310, an action is "brought to trial" if, in a jury case, the jury has been impaneled. (*Hartman v. Santamarina* (1982) 30 Cal.3d 762, 765–767, 765 n.3.) A jury is "impaneled and sworn" when a panel of prospective jurors assembles in a courtroom for voir dire and is sworn to tell the truth. (*Stueve v. Nemer* (2017) 7 Cal.App.5th 746, 750–755.) On the other hand, the Court is surprised that by the obvious impracticability of Plaintiff's proposal, as staff and the Court herself have myriad other obligations that continue throughout a jury trial and make a 9am jury start time impossible.